

The Court's order to appear and show cause why Case Nos. 23CV423808 and 25CV470109 should not be consolidated, Plaintiff's motion to compel production of documents (sets 4 and 5), and Defendant's motion to compel production of ESI in either native or another reasonably usable format came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

I. Consolidation of Case No. 25CV470109 with Case No. 23CV423808

Code of Civil Procedure Section 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." "A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions." (*Wouldridge v. Burns* (1968) 265 Cal. App. 2d 82, 86.) "Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (*Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147.) "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only." (*Id.* at 1149.)

Plaintiff insists that Case Nos. 23CV423808 and 25CV470109 are so different that they are not even related. California Rule of Court, Rule 3.300 provides:

(a) Definition of "related case" A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases:

- (1) Involve the same parties and are based on the same or similar claims;
- (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical